

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 15310/08
Ion ILIE against Romania
and 6 other applications
(see table appended)

The European Court of Human Rights (Third Section), sitting on 15 January 2013 as a Committee composed of:

Alvina Gyulumyan, *President,*
Kristina Pardalos,
Johannes Silvis, *judges,*
and Marialena Tsirli, *Deputy Section Registrar,*

Having regard to the above applications lodged on various dates, as indicated in the Annex,

Having regard to the declarations submitted by the respondent Government requesting the Court to strike the applications out of the list of cases and the applicants' replies to these declarations,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicants are all Romanian nationals whose identification information is included in the appended table. The Romanian Government ("the Government") were represented by Mrs Irina Cambrea and Mrs Catrinel Brumar, from the Ministry of Foreign Affairs.

All applications concern the length of civil or criminal proceedings in which the applicants were involved, with lapses of time ranging from over six to over eight years. The essential information relating to the proceedings in which they were involved is to be found in the Annex.

COMPLAINTS

1. The applicants complained under Article 6 § 1 of the Convention about the length of the proceedings before the domestic courts.

2. With the exception of the case *Chiorean v. Romania* (application no. 41735/08), various other complaints were also raised by the applicants in respect of the same sets of proceedings, the details of which are to be found in the Annex.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to join them.

A. Complaints under Article 6 § 1 concerning the length of proceedings

The applicants complained about the length of the civil or of the criminal proceedings under Article 6 § 1 of the Convention. This provision provides as follows:

> "In the determination of /his civil rights and obligations or of/ any criminal charge against him everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal..."

1. The Government's unilateral declarations

After the failure of attempts to reach a friendly settlement, by letters sent on the dates tabulated below the Government informed the Court that they proposed to make unilateral declarations with a view to resolving the issues raised by the applications. They further requested the Court to strike out the applications in accordance with Article 37 of the Convention.

By these declarations the Romanian authorities acknowledged that the length of the proceedings in the applicants' cases had failed to comply with the "reasonable time" requirement set down in Article 6 of the Convention. They also declared that they were ready to pay the applicants the sums tabulated below. The relevant part of the declarations reads as follows:

> "The Government declare, by way of this unilateral declaration, their acknowledgement of the excessive delay in the domestic proceedings/of the existence of a violation [of Article 6 § 1 of the Convention] regarding the excessive delay in the domestic proceedings.
>
> The Government are prepared to pay to the applicant[s] as just satisfaction the sum of [sums tabulated below], amount which they consider reasonable in the light of the Court's case-law.

> This sum is to cover all damage as well as the costs and expenses and will be free of any taxes that may be applicable. This sum will be payable [in the respondent State's national currency] to the personal account indicated by the applicant[s] within three months from the date of the notification of the decision pursuant to Article 37 § 1 of the Convention. In the event of failure to pay this sum within the said period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. Therefore, the Government respectfully invite the Court rule that the examination of the present application is no longer justified and to strike the application out of its list of cases, pursuant to Article 37 § 1 (c) of the Convention."

2. The applicants' positions

In reply, all the applicants expressed the view that the sums mentioned in the Government's declarations were unacceptably low and therefore refused the amounts proposed by the Government.

3. The Court's assessment

The Court recalls that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

It also recalls that in certain circumstances, it may strike out an application under Article 37 § 1(c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the case to be continued.

To this end, the Court will examine carefully the declaration in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (*Tahsin Acar v. Turkey*, [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI); *WAZA Spółka z o.o. v. Poland* (dec.), no. 11602/02, 26 June 2007; and *Sulwińska v. Poland* (dec.), no. 28953/03).

The Court has established in a number of cases, including those brought against Romania, its practice concerning complaints about the violation of one's right to a hearing within a reasonable time (*Abramiuc v. Romania*, no. 37411/02, §§ 103-109, 24 February 2009; *Frydlender v. France* [GC], no. 30979/96, § 43, ECHR 2000-VII; *Cocchiarella v. Italy* [GC], no. 64886/01, §§ 69-98, ECHR 2006-....; *Majewski v. Poland*, no. 52690/99, 11 October 2005; and *Wende and Kukówka v. Poland*, no. 56026/00, 10 May 2007).

Having regard to the nature of the admissions contained in the Government's declarations, as well as the amounts of compensation proposed – which are consistent with the amounts awarded in similar

cases – the Court considers that it is no longer justified to continue the examination of this part of the applications (Article 37 § 1(c)).

Moreover, in light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the applications (Article 37 § 1 *in fine*).

Accordingly, this part of the applications should be struck out of the list.

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declarations, the applications could be restored to the list in accordance with Article 37 § 2 of the Convention (*Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

B. Other complaints

Referring to other Articles of the Convention and its protocols, the applicants, with the exception of those in the case *Chiorean v. Romania* (application no. 41735/08), complained of further aspects related to the above proceedings.

Having regard to all the materials in its possession, and in so far as these complaints fall within its competence, the Court finds that there is no appearance of a violation of the rights and freedoms set out in these provisions in that respect. It follows that this part of the applications must be rejected pursuant to Article 35 §§ 1, 3 and 4 of the Convention.

For these reasons, the Court unanimously

Joins the applications;

Takes note of the terms of the respondent Government's declarations under Article 6 § 1 of the Convention regarding the length of the proceedings and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike this part of the applications out of its list of cases in accordance with Article 37 § 1 (c) of the Convention;

Declares the remainder of the applications inadmissible.

Marialena Tsirli
Deputy Registrar

Alvina Gyulumyan
President

ANNEX

No.	Application no. Introduction date	Applicant's name, date of birth, place of residence, name of representative (if any)	Length of proceedings, levels of jurisdiction	Date of the unilateral declaration and compensation offered (Euros)	Other complaints
1.	15310/08 Lodged on 27 March 2008	**Ion ILIE** 5 March 1956, Constanţa Represented by Aurelian Gîndac, lawyer practising in Bucharest	7 years and 8 months, 3 levels	30 May 2012 **1,600**	Articles 6 § 1 (fairness and outcome of the proceedings) and 1 of Protocol No. 1
2.	25843/08 Lodged on 16 May 2008	**Nicolae DANCIU** 10 December 1945, Cătunele, Gorj County	6 years, 3 levels	18 July 2012 **600**	Articles 6 § 1 (fairness and outcome of the proceedings) and 1 of Protocol No. 1
3.	28112/08 Lodged on 5 May 2008	**Gheorghe GHIURĂU** 5 September 1963, Oradea, Bihor County	8 years, 3 levels	17 May 2012 **1,440**	Articles 5, 6 § 2, 11, 14, 17, 18 and 1 of Protocol No. 1
4.	32257/08 Lodged on 18 June 2008	**Constanţa IUREŞ** 21 May 1926, Craiova, Dolj County	8 years and 3 months, 3 levels	27 June 2012 **1,440**	Articles 6 § 1 (fairness and outcome of the proceedings) and 1 of Protocol No. 1
5.	41735/08 Lodged on 25 August 2008	**Mihai-Titus CHIOREAN** 15 January 1970 Reşiţa, Timiş County **Dumitru CHIOREAN** 17 August 1940 Reşiţa, Timiş County	6 years	31 July 2012 **600 jointly**	–
6.	16179/09 Lodged on 16 March 2009	**Mihai Marcel TITOV** 26 December 1939 Cluj-Napoca, Cluj County	8 years and 5 months, 3 levels	22 August 2012 **1,100**	Articles 6 § 1 (fairness and outcome of the proceedings) and 1 of Protocol No. 1
7.	27265/10 Lodged on 8 April 2010	**Magda POPESCU** 20 February 1956, Bârlad, Vaslui County	7 years and 6 months, 3 levels	28 March 2012 **1,400**	Articles 6 § 1 (assessment of evidence and outcome of the proceedings) and 6 § 2